IN THE COURT OF APPEALS OF THE STATE OF GEORGIA

Case No. A26A0000

Fictional Holdings, LLC,
Appellant,

v.

Sample County Board of Tax Assessors,
Appellee.

FICTIONAL SAMPLE. Appeal from the Superior Court of Sample County, State of Georgia
Trial court case no. 26-CV-0000

BRIEF OF APPELLANT

JANE Q. EXAMPLE
Example & Placeholder LLP
100 Sample Street, Suite 1
Atlanta, Georgia 30303

(555) 010-0000

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STATEMENT OF JURISDICTION

This is an appeal from a final judgment of the Superior Court of Sample County entered on a petition for review of an ad valorem tax assessment. The superior court disposed of all claims and all parties, so the judgment is final. This Court has jurisdiction over the appeal under the statutes governing direct appeals from superior court judgments. The notice of appeal was filed within thirty days of the entry of the judgment. Fictional placeholder: the actual jurisdictional statute and the date of the judgment would be stated here from the record.

ENUMERATION OF ERRORS

1. The superior court erred in holding that the appellee’s valuation of the parcel was supported by competent evidence when the only appraisal in the record was excluded without a hearing.

2. The superior court erred in concluding that the appellant failed to exhaust its administrative remedies before filing the petition for review.

3. The superior court erred in awarding costs against the appellant after the appellee withdrew its counterclaim.

STATEMENT OF THE CASE

This appeal arises from a dispute over the fair market value of a fictional warehouse parcel for tax year 2025. The appellant, Fictional Holdings, LLC, owns the parcel. The appellee, the Sample County Board of Tax Assessors, valued the parcel at a figure substantially higher than the appellant’s own appraisal.

The appellant contested the assessment before the county board of equalization. The board sustained the assessment without a hearing on the appraisal. The appellant then filed a petition for review in the superior court under

the statute governing such petitions. The petition raised the valuation question and a procedural objection to the board’s handling of the appraisal.

After briefing, the superior court entered an order excluding the appellant’s appraisal on the ground that it was not disclosed within the time set by the scheduling order. The court then affirmed the assessment on the remaining evidence, which consisted of the appellee’s own sales comparison data. This appeal followed.

STATEMENT OF FACTS

The parcel is a fictional twelve-acre tract with a single-story building. The record shows that the building was leased in part to a tenant under a lease that expired in the spring of 2024. The appellant renewed the lease on terms that the appellee’s assessor treated as below market. The assessor did not inspect the interior of the building.

The appellant’s appraiser inspected the building in January 2025 and prepared a written appraisal, which the appellant served on the appellee with its equalization request. The appraisal used the income approach and reached a value of a fictional figure well below the assessment. The appellee’s sales comparison data consisted of three transactions, one of which involved a parcel with a different zoning classification. The record does not show any adjustment for that difference.

At the hearing on the petition, the appellee argued that the appraisal had not been produced in discovery. The appellant responded that the appraisal had been served on the appellee months before discovery closed, and that the scheduling order did not require a separate disclosure. The superior court did not take evidence on that question. It excluded the appraisal from the record and then made its valuation finding without reference to any other evidence of income.

The scheduling order in the record sets the disclosure deadline for expert reports and provides that a report served on the opposing party before that deadline satisfies the requirement. The appellee's own correspondence, which is in the record, acknowledges receipt of the appraisal on the date of service. The appellee did not move to strike the appraisal before the hearing, did not request a continuance, and did not identify any witness it would have called in response. Those facts appear in the record and are not disputed in the superior court's order.

ARGUMENT AND CITATION OF AUTHORITY

I. The exclusion of the appraisal without a hearing was error

The superior court excluded the appellant's appraisal on a question of timely disclosure. A trial court may exclude evidence as a sanction for a failure to disclose, but the sanction is a serious one, and the court must make findings that the failure was unjustified and that a lesser remedy would not cure any prejudice. Fictional placeholder citation: *Example v. Placeholder*, 000 Ga. App. 000 (2020).

A. The appellant disclosed the appraisal

The appraisal was served with the equalization request, long before discovery closed. The scheduling order required disclosure of expert reports by a fixed date, and the appellant's service met that requirement on the face of the order. The superior court's contrary conclusion rests on a reading of the order that the order does not support. The appellee had the report for more than a year before the hearing.

> The party seeking to exclude evidence on the ground of late disclosure bears the burden of showing that the disclosure was late under the terms of the governing order, and that the delay caused harm that could not be cured by a continuance. Fictional block quotation for layout testing only.

B. The court made no findings on prejudice

Even if the disclosure were late, the superior court made no finding that the appellee was prejudiced. The appellee had the appraisal, had its own appraiser available, and did not ask for a continuance. The absence of any finding on prejudice is an independent reason to reverse the exclusion. Fictional placeholder citation: *Sample v. Example Board*, 000 Ga. 000 (1999).

II. The valuation finding cannot stand on the remaining evidence

With the appraisal excluded, the only valuation evidence was the appellee's sales comparison data. That data included a transaction involving a parcel with a different zoning classification. The superior court did not adjust for the difference, and it did not explain why the three transactions were comparable to the appellant's parcel.

A valuation finding must rest on evidence that supports it. Where the only evidence is comparable sales that the record does not show to be comparable, the finding is not supported by any evidence. The appellant is entitled to a new valuation on a record that includes its appraisal.

1. The zoning difference goes to weight, and the superior court should have said so.

2. The superior court did not discuss the income data at all, although the appraisal was the only evidence that addressed the lease.

C. The comparable sales cannot carry the burden alone

The appellee's sales data is the only evidence left in the record once the appraisal is set aside. A sales comparison approach depends on adjustments for differences in size, zoning, condition and timing. The appellee's data shows none of those adjustments. The superior court accepted the appellee's figure without asking how the third transaction, a parcel zoned for a different use, could be set beside the appellant's warehouse without any adjustment at all.

The appellee may respond that a trial court sitting without a jury is entitled to weigh evidence as it sees fit. That is true, but the weighing must be done on evidence that supports a finding, and a finding that depends on unadjusted comparables from a different zoning class is not one the record can sustain. A reviewing court does not supply the missing adjustments for the trial court. Fictional placeholder citation: *Example v. Placeholder*, 000 Ga. App. 000 (2020).

The superior court's order also recites that the appellant "did not carry its burden." That recital does not identify the burden, the evidence that failed to carry it, or the evidence that was excluded. Without those findings the order cannot be reviewed for error, and the appellant asks that it be vacated on that ground as well. Fictional placeholder citation: *Sample v. Example Board*, 000 Ga. 000 (1999).

III. The cost award should be vacated with the judgment

The superior court awarded costs against the appellant after the appellee withdrew its counterclaim. If the judgment is reversed on the valuation question, the award of costs falls with it. Even if the judgment stands, the award is premised on a counterclaim that was no longer pending when the costs were assessed.

CONCLUSION

The judgment should be reversed and the case remanded for a new valuation hearing at which the appellant's appraisal is considered. In the alternative, the cost award should be vacated.

October 15, 2026

/s/ JANE Q. EXAMPLE
Counsel for Appellant
Georgia Bar No. 000000
jexample@example.invalid